

4	Ko vs. Newrez, LLC 2024-01400538	1. Demurrer to Amended Complaint Defendants William R. Jarrell and Aldridge Pite, LLP’s Demurrer to the First Amended Complaint is OVERRULED as moot. Defendants were dismissed on 4/2/25. (ROA 104, 106.) Thus, the Demurrer must be overruled as moot. (See <i>JKC3H8 v. Colton</i> (2013) 221 CA4th 468, 477.)
5	Rodriguez vs. Career Networks Institute 2023-01322769	1. Demurrer to Amended Complaint The unopposed general demurrer of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to the second amended complaint of plaintiff Gabriela Rodriguez is sustained in its entirety without leave to amend. Defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales demur generally and specially on the ground of uncertainty to all three causes of action in the second amended complaint of plaintiff Gabriela Rodriguez (ROA 73), which are based on her dismissal from the nursing program of defendant Career Networks Institute, Inc. Plaintiff alleges that defendant Anne Gonzales was an employee of the co-defendant. (See SAC, ¶ 3.) <u>First cause of action for negligence against defendant Gonzales.</u> The first cause of action is for negligence, which is asserted only against defendant Gonzales. Actionable negligence is traditionally regarded as involving the following: (1) a legal duty to use due care; (2) a breach of that duty; and (3) the breach as the proximate or legal cause of the resulting injury. 6 Witkin, Summary of Cal. Law (11 ed. 2024), Torts § 961. The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion. <u>Greenberg v. Superior Court</u> (2009) 172 Cal.App.4th 1339, 1349. Courts have invoked the concept of duty to limit generally the otherwise potentially infinite liability that would follow from every negligent act. <u>Ibid.</u> Unlike the elements of breach, causation, and injury, all of which are fact-specific issues for the trier of fact, the existence and scope of a duty are questions of law. <u>Staats v. Vintner’s Golf Club, LLC</u> (2018) 25 Cal.App.5th 826, 833.

In her first cause of action, plaintiff alleges that she was harmed by negligence of defendant Gonzales during her enrollment at the nursing school until she was expelled. (SAC, ¶ 67.) Among other things, plaintiff alleges that defendant Gonzales owed her “a duty to use ordinary care in facilitating [her education], including but not limited to providing redress, applying fairness as well as treating its student equally.” (SAC, ¶ 71.) She alleges that defendant Gonzales breached this duty “when she gave Plaintiff the wrong test and then announced the bad scoring of the test to the entire class.” (SAC, ¶ 74.)

Defendants contend that plaintiff was not owed a duty of care with respect to her education, citing Wells v. One2One Learning Foundation (2006) 39 Cal.4th 1164, and Smith v. Alameda County Social Services Agency (1979) 90 Cal.App.3d 929. In Wells, the court explained that there was no cognizable cause of action for educational malfeasance, stating:

As the court [in Peter W. v. San Francisco Unified School District (1976) 60 Cal.App. 3d 814] noted, “classroom methodology affords no readily acceptable standards of care, or cause, or injury.” Pedagogical science, the court observed, is “fraught with different and conflicting theories” about how children should be taught; moreover, educational success or failure “is influenced by a host of factors,” both personal and external, “which affect the pupil subjectively” and often are beyond the control of educators. [Citation.] “We find in this situation,” said the court, “no conceivable ‘workability of a rule of care’ against which defendants’ alleged conduct may be measured [citation], no reasonable ‘degree of certainty that ... plaintiff suffered injury’ within the meaning of the law of negligence [citation], and no such perceptible ‘connection between the defendant’s conduct and the injury suffered,’ as alleged, which could establish a causal link between them within the same meaning [citation].” [Citation.]

Peter W. also identified other public policy considerations, “even more important in practical terms,” that counsel against an “actionable ‘duty of care’ in persons and agencies who administer the academic phases of the public educational process.”

[Citation.] The opinion noted that the public schools are “already beset by social and financial problems,” including widespread dissatisfaction with their academic performance, and are subject to “the limitations imposed upon them by their publicly supported budgets.” [Citation.] Subjecting such institutions to an academic duty of care under these circumstances, the opinion concluded, “would expose them to the tort claims—real or imagined—of disaffected students and parents in countless numbers.... The ultimate consequences, in terms of public time and money, would burden them—and society—beyond calculation.” [Citation.]

Wells v. One2One Learning Foundation, *supra*, 39 Cal.4th at pp. 1211-1212.

Plaintiff has not opposed the demurrer or otherwise shown that the Court should conclude that defendant Gonzales owed her a duty of care in her educational studies.

Second cause of action for negligent misrepresentation. The second cause of action is for negligent misrepresentation and it is asserted against both defendants.

The elements of fraud are: (a) misrepresentation, i.e., false representation, concealment, or nondisclosure; (b) knowledge of falsity or “scienter”; (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184. The elements of negligent misrepresentation are similar to intentional fraud except for the requirement of scienter; in a claim for negligent misrepresentation, the plaintiff need not allege the defendant made an intentionally false statement, but simply one as to which he or she lacked any reasonable ground for believing the statement to be true. *Ibid.*

Defendants contend that this cause of action fails because plaintiff does not allege that they made any false representations, and this contention is well-taken. Plaintiff merely alleges that defendant Gonzales purposefully gave her “an erred test to make her fail because the test was on a subject not covered in the class at said time” and that defendant Gonzales “intentionally told the entire class that [plaintiff] failed the erred test which was demeaning and despicable.”

		(SAC, ¶¶ 96 and 97.) As defendants point out, these are actions and not misrepresentations. <u>Third cause of action for vicarious liability.</u> The third cause of action is for vicarious liability against defendant College Networks Institute only. It appears to state a cause of action against this defendant based on negligence of the co-defendant. Plaintiff alleges that defendant Career Networks Institute “had a duty, whether arising under statute or by common law, to exercise due care with respect to the professional, ethical, and legal conduct of its business, such that no undue harm would befall its customers, i.e., its students.” (SAC, ¶ 114.) She alleges that defendant breached this duty because co-defendant Gonzales “harmed [p]laintiff as a result of her unlawful disclosure of [p]laintiff’s examine grade and erred test as previously complained of herein.” Again, California courts have not recognized a duty of care on the part of an educational institution that supports a claim for educational malfeasance, and plaintiff has not opposed the demurrer or shown that such a duty was owed. Thus, the unopposed general demurrer of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to the second amended complaint of plaintiff Gabriela Rodriguez is sustained in its entirety without leave to amend. 2. Motion to Strike Portions of Complaint The motion of defendants Career Networks Institute, Inc., dba CNI College, and Anne Gonzales to strike portions of the second amended complaint of plaintiff Gabriela Rodriguez is MOOT.
6	Pacific Rim Cultural Foundation vs. Ainsworth 2024-01400894	1. Demurrer to First Amended Complaint by Defendant Andrew Boyd-Jones (ROA 85) The Demurrer of Defendant Andrew Boyd-Jones is SUSTAINED. Plaintiff’s request for judicial notice of filings in the Orange County and Los Angeles Superior Courts (ROA 102) is granted.